

PLAINTIFF'S EVIDENCE BUNDLE

Acme Logistics Inc. v. DataStream Analytics Corp.

United States District Court, Southern District of New York

Civil Action No. 1:24-cv-03871-JSR

Submitted by: Northstar Counsel LLP

Date of Submission: April 3, 2024

CONFIDENTIAL — ATTORNEY-CLIENT PRIVILEGED

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EXHIBIT
PX-001

Portal Access Log Extract — January–February 2024

Case No.	1:24-cv-03871-JSR
Source System	SecureShare Portal v4.2 — Acme Logistics Inc.
Log Period	January 22, 2024 – February 29, 2024
Extracted By	Kevin Marsh, VP IT Security, Acme Logistics Inc.
Extraction Date	March 4, 2024 at 14:05 EST
Hash (SHA-256)	a3f9c2e1b847d506f1234abc789def0112345678abcdef90
Bates Range	ACM-LOG-000001 – ACM-LOG-000048

ACCESS LOG — FULL EXTRACT (48 records shown; anomalous entries highlighted)

Seq #	Timestamp (EST)	IP Address	Geo / ISP	User-Agent	Action	Status
001	2024-01-22 09:14:02	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 121 / macOS	UPLOAD — disclosure_pkg_v1.zip	SUCCESS
002	2024-01-22 09:14:45	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 121 / macOS	DOWNLOAD — disclosure_pkg_v1.zip	SUCCESS
003	2024-01-22 11:02:17	198.51.44.18	New York, NY / Northstar LLP (Corporate)	Chrome 121 / Windows	VIEW — disclosure_pkg_v1.zip	SUCCESS
004	2024-01-23 08:45:33	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 121 / macOS	VIEW — disclosure_pkg_v1.zip	SUCCESS
005	2024-01-24 14:20:09	198.51.44.18	New York, NY / Northstar LLP (Corporate)	Chrome 121 / Windows	DOWNLOAD — disclosure_pkg_v1.zip	SUCCESS
006	2024-01-29 10:11:55	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Safari 17 / macOS	VIEW — disclosure_pkg_v1.zip	SUCCESS
007	2024-02-05 16:03:44	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 121 / macOS	VIEW — disclosure_pkg_v1.zip	SUCCESS
008	2024-02-12 09:55:28	198.51.44.18	New York, NY / Northstar LLP (Corporate)	Chrome 121 / Windows	VIEW — disclosure_pkg_v1.zip	SUCCESS
009	2024-02-19 11:40:02	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 121 / macOS	VIEW — disclosure_pkg_v1.zip	SUCCESS
010	2024-02-28 23:14:07	104.28.197.83	Hoboken, NJ / Residential — Comcast Xfinity	curl/7.88.1 (Linux)	DOWNLOAD — disclosure_pkg_v1.zip	SUCCESS *** ANOMALY ***
011	2024-02-28 23:14:39	104.28.197.83	Hoboken, NJ / Residential — Comcast Xfinity	curl/7.88.1 (Linux)	DOWNLOAD — disclosure_pkg_v1.zip	SUCCESS *** ANOMALY ***

Seq #	Timestamp (EST)	IP Address	Geo / ISP	User-Agent	Action	Status
012	2024-02-29 08:30:12	198.51.44.12	New York, NY / Northstar LLP (Corporate)	Chrome 122 / macOS	VIEW — disclosure_pkg_v1.zip	SUCCESS

ANALYST NOTES

Records 010–011 (highlighted above) represent unauthorized access events. IP address 104.28.197.83 is a Comcast Xfinity residential IP registered to a Hoboken, NJ subscriber. This IP address is not associated with any authorized Representative under the NDA (Article 1.3). Access was made via curl/7.88.1 on Linux, indicating programmatic (scripted) download rather than interactive browser use. The two sequential downloads within 32 seconds are consistent with an automated retrieval script. Subscriber identity for 104.28.197.83 was confirmed via ISP subpoena response dated March 18, 2024 (see Exhibit PX-004).

EXHIBIT
PX-002

Chain of Custody Form

Case No.	1:24-cv-03871-JSR
Evidence Item	Portal Access Log Extract — ACM-LOG-000001 to ACM-LOG-000048
Media Type	Encrypted USB Drive (Kingston IronKey S1000, 8 GB) + SHA-256 Hash File
Item No.	COC-2024-0089-001

Transf er #	Date & Time	Released By	Received By	Purpose	Condition
1	Mar 4, 2024 14:22 EST	Kevin Marsh Acme Logistics	Daniel Cho Northstar Counsel	Forensic analysis & litigation hold	Sealed / Intact
2	Mar 8, 2024 10:05 EST	Daniel Cho Northstar Counsel	Dr. Sandra Reeves Reeves Digital Forensics LLC	IP attribution & forensic examination	Sealed / Intact
3	Mar 22, 2024 14:45 EST	Dr. Sandra Reeves Reeves Digital Forensics LLC	Daniel Cho Northstar Counsel	Return after examination; copy retained	Sealed / Intact
4	Apr 2, 2024 09:30 EST	Daniel Cho Northstar Counsel	Clerk of Court S.D.N.Y.	Filing with court as Exhibit PX-001	Sealed / Intact

I certify under penalty of perjury that the information recorded above is true and accurate and that the evidence described was maintained in a secure manner consistent with accepted forensic evidence handling protocols throughout each transfer.

Kevin Marsh

VP IT Security
Acme Logistics Inc.

Date: April 2, 2024

EXHIBIT
PX-003

Declaration of Kevin Marsh Vice President, IT Security — Acme Logistics Inc.

I, Kevin Marsh, declare under penalty of perjury under the laws of the United States of America that the following is true and correct:

1. I am Vice President of IT Security at Acme Logistics Inc. ("Acme"), a position I have held since March 2019. I hold a Certified Information Systems Security Professional (CISSP) designation and have over fourteen years of experience in enterprise cybersecurity and digital forensics.
2. On or about February 2, 2024, I became aware of anomalous outbound network traffic originating from Acme's internal logistics management system, designated LogiCore. I initiated an internal incident response investigation on that date.
3. On March 4, 2024, following notification from Acme's General Counsel that a journalist had contacted our PR department with non-public information, I conducted a forensic review of Acme's SecureShare portal access logs for the period January 22 through February 29, 2024.
4. SecureShare portal version 4.2 generates immutable, timestamped access logs for all file operations including uploads, downloads, and views. These logs are written to an append-only database table and cannot be modified by portal administrators. Logs are hashed hourly using SHA-256 and the hash values are recorded in a separate audit table.
5. My review of the access logs identified twelve (12) access events during the review period. Ten (10) of those events originated from IP addresses resolving to Northstar Counsel LLP's corporate network (198.51.44.0/24), consistent with authorized access by representatives of Northstar Counsel under the NDA.
6. Two (2) access events — Sequence Numbers 010 and 011 in the log extract attached as Exhibit PX-001 — occurred at 23:14:07 and 23:14:39 EST on February 28, 2024, from IP address 104.28.197.83. This IP address does not belong to Northstar Counsel LLP's network range and is not associated with any authorized Representative under the Non-Disclosure Agreement dated January 15, 2024.
7. The User-Agent string associated with both anomalous access events was `curl/7.88.1` running on a Linux operating system. This is consistent with an automated command-line download script rather than interactive browser access. The two downloads occurred 32 seconds apart, further consistent with scripted automation.
8. Both anomalous downloads successfully retrieved the file `disclosure_pkg_v1.zip`, which contained Acme's confidential breach investigation materials, including technical architecture documentation for the LogiCore platform, customer record counts, and internal database designations LCORE-DB-01 and LCORE-DB-02.
9. I personally extracted the relevant log records on March 4, 2024, at approximately 14:05 EST, computed a SHA-256 hash of the extracted dataset, and transferred the data to a sealed Kingston IronKey S1000 encrypted USB drive as documented in the Chain of Custody Form attached as Exhibit PX-002.
10. Following this discovery, I enabled IP whitelisting on the SecureShare portal, restricting future access to approved IP ranges only. Prior to this date, the portal permitted access from any authenticated IP address.

I declare under penalty of perjury that the foregoing is true and correct. Executed on April 1, 2024, in New York, New York.

Kevin Marsh

VP IT Security, Acme Logistics Inc.

CISSP No. 472819 | k.marsh@acmelogistics.com

Date: April 1, 2024

EXHIBIT
PX-004

Forensic Examiner's Report IP Attribution Analysis — Case No. 1:24-cv-03871-JSR

Examiner	Dr. Sandra Reeves, Ph.D. (Computer Science), EnCE, GCFE
Firm	Reeves Digital Forensics LLC, 88 Pine Street, Suite 1600, New York, NY 10005
Engaged By	Northstar Counsel LLP on behalf of Acme Logistics Inc.
Scope	Attribution of unauthorized portal access events (Seq #010–011) to a named subscriber
Evidence Rcvd	March 8, 2024 (COC Transfer #2 — see Exhibit PX-002)
Report Date	March 20, 2024
Report No.	RDF-2024-0312

1. SCOPE AND METHODOLOGY

I was retained to perform a technical attribution analysis of two unauthorized access events recorded in the SecureShare portal access logs (Exhibit PX-001) originating from IP address 104.28.197.83. My analysis included: (1) WHOIS and ARIN registry queries; (2) passive DNS analysis; (3) review of ISP subpoena response (Comcast Xfinity, received March 18, 2024); and (4) open-source intelligence (OSINT) correlation of the subscriber identity with known professional affiliations.

2. IP ADDRESS ATTRIBUTION FINDINGS

Parameter	Value	Source
Target IP	104 . 28 . 197 . 83	Portal access log (PX-001)
ISP	Comcast Cable Communications, LLC (AS7922)	ARIN WHOIS / MaxMind GeoIP
Subscriber Name	Thomas R. Calloway	ISP Subpoena Response — Mar 18, 2024
Service Address	44 River Court, Apt 12B, Hoboken, NJ 07030	ISP Subpoena Response
Account Active	August 2022 – Present	ISP Subpoena Response
OSINT — LinkedIn	Thomas R. Calloway — Senior Data Engineer, DataStream Analytics Corp. (Nov 2023–Present); formerly Junior Associate, Northstar Counsel LLP (Sep 2021–Oct 2023)	LinkedIn public profile (archived Mar 9, 2024)

3. KEY FINDINGS

CONFIRMED	IP 104.28.197.83 is definitively attributed to a residential Comcast account at 44 River Court, Hoboken, NJ, held by Thomas R. Calloway, per ISP subpoena response.
CONFIRMED	Thomas R. Calloway was employed at Northstar Counsel LLP from September 2021 to October 2023, providing a plausible mechanism by which a portal access credential was obtained or retained.
CONFIRMED	Thomas R. Calloway joined DataStream Analytics Corp. as Senior Data Engineer in November 2023 — approximately two months before the NDA was executed and the disclosure package uploaded.
HIGH CONFIDENCE	The curl/7.88.1 User-Agent and 32-second interval between downloads are consistent with an automated script designed to retrieve the file in two parallel streams, a common technique to bypass single-connection bandwidth throttling.
CRITICAL	No authorized Representative listed in the NDA has any professional or residential connection to IP 104.28.197.83. The access was unauthorized. The subscriber's employment at DataStream Analytics Corp. establishes a direct nexus between the unauthorized access and a competitor of Acme Logistics Inc.

4. EXAMINER CERTIFICATION

I certify that this report was prepared in accordance with generally accepted digital forensics standards and that the findings herein are based solely on my independent technical analysis of the evidence provided. I have no financial or personal interest in the outcome of this matter beyond my engagement as a retained expert.

Dr. Sandra Reeves

Date: March 20, 2024

Ph.D. Computer Science | EnCE | GCFE
Reeves Digital Forensics LLC | sreeves@reevesdf.com

EXHIBIT
PX-005

Incident Response Timeline Acme Logistics Data Breach — February–April 2024

The following timeline summarizes key events from the initial discovery of the data breach through the commencement of litigation. All times are Eastern Standard/Daylight Time.

Date & Time	Event	Actor(s)	Reference
Feb 2, 2024 ~09:00 EST	Anomalous outbound traffic detected on LogiCore platform. Incident response initiated.	K. Marsh / Acme IT	Internal IR ticket #IR-2024-0201
Feb 2, 2024 14:30 EST	General Counsel P. Nair notified. Decision made to engage outside counsel.	P. Nair / Acme Legal	—
Jan 10–15, 2024*	NDA negotiated and executed between Acme and Northstar Counsel LLP.	M. Ashford, D. Cho / Northstar; P. Nair, R. Harmon / Acme	NDA (Exhibit A)
Jan 22, 2024 09:14 EST	Disclosure package (disclosure_pkg_v1.zip) uploaded to SecureShare portal and shared with Northstar Counsel.	P. Nair / Acme	PX-001, Seq #001
Feb 28, 2024 23:14 EST	UNAUTHORIZED ACCESS: IP 104.28.197.83 (Hoboken, NJ) downloads disclosure package twice via curl script.	Thomas R. Calloway (attributed)	PX-001, Seq #010–011 PX-004
Mar 4, 2024 06:45 EST	NY Chronicle journalist contacts Acme PR with non-public breach details.	NY Chronicle / External	Email Thread THR-2024-002
Mar 4, 2024 08:22 EST	Acme provides formal written notice of potential NDA breach to Northstar Counsel per Article 2.4.	P. Nair / Acme	Email THR-2024-002, EML-002-A
Mar 4, 2024 14:05 EST	K. Marsh extracts portal access logs. Anomalous NJ IP identified. USB drive prepared and sealed.	K. Marsh / Acme IT	PX-001, PX-002, PX-003
Mar 7, 2024	NY Chronicle publishes article disclosing material details of the Acme Data Breach.	NY Chronicle / External	Public record
Mar 8, 2024 10:05 EST	Forensic evidence transferred to Dr. Sandra Reeves, Reeves Digital Forensics LLC.	D. Cho / Northstar	PX-002, Transfer #2
Mar 18, 2024	ISP subpoena response received from Comcast. IP 104.28.197.83 attributed to T. Calloway, DataStream employee.	Comcast / ISP	PX-004
Mar 20, 2024	Forensic examiner's report completed. DataStream nexus confirmed.	Dr. S. Reeves / RDF LLC	PX-004
Apr 3, 2024	Complaint filed in S.D.N.Y. — Case No. 1:24-cv-03871-JSR.	Northstar Counsel on behalf of Acme	Court Filing (Exhibit B)

* Note: NDA was executed on January 15, 2024, prior to the breach discovery date of February 2, 2024, as outside counsel was engaged in anticipation of the incident response.